Yunis Khan And 7 Others vs State Of U.P. And Another on 10 July, 2025

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2025:AHC:110428

Court No. - 75

Case :- APPLICATION U/S 482 No. - 34815 of 2024

Applicant :- Yunis Khan And 7 Others

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Rakesh Chandra Pathak,Yogesh Kumar Mishra

Counsel for Opposite Party :- G.A.

Hon'ble Vikas Budhwar,J.

1. Heard Shri Yogesh Kumar Mishra, learned counsel for the applicants and Sri S.K. Singh, learned AGA for the State as well as Shri Ajay Kumar Srivastava, counsel for opposite party no. 2.

2. The counsel for the rival parties have made a joint statement that they do not propose to file any further affidavits, thus, with the consent of the parties, the application is being decided at the fresh stage.

3. This application under Section 482 Cr.P.C. has been filed by the applicants to quash the Case No. 10868 of 2024, u/s 12 of the Protection of Women from Domestic Violence Act 2005, P.S. Malpura, District-Agra. (Nagma Vs Yunis khan and others) Pending Before Learned Court Civil Judge (Junior Division) fast Track Court First, Agra and quash the impugned orders 01.05.2024.

4. This Court on 27.01.2025 proceeded to pass the following orders:

"1. Heard Sri Yogesh Kumar Mishra, learned counsel for the applicants and Sri Udai Bhan, learned A.G.A. for the State.

2. The present 482 Cr.P.C. application has been filed to stay the further proceeding of Case No. 10868 of 2024 u/s 12 of The Protection of Women from Domestic Violence Act, 2005, P.S.- Malpura, District- Agra (Nagma Vs. Yunis Khan and others) pending before the court of learned Civil Judge (Junior Division), Fast Track Court First, Agra and quash the impugned order 01.05.2024 passed by learned Civil Judge (Junior Division), Fast Track Court First, Agra.

3. Contention of learned counsel for the applicants is that the present proceeding is arising out of the offence which is matrimonial in nature, and therefore, the matter may be referred to the Mediation Centre.

4. In view of the above, the matter is referred to the Mediation Centre, High Court Allahabad, subject to the condition that the applicants will deposit a sum of Rs.35,000/- within two weeks from today with the Mediation Centre, out of which Rs.30,000/- shall be paid to the opposite party no.2 on her appearance before the Mediation Centre on a date to be fixed by the mediation center. Balance Rs.5,000/- shall be retained by the mediation center towards its expenses.

5. Issue notice to opposite party no.2.

6. After depositing the aforesaid amount within aforementioned time, notices shall be issued to the parties fixing some date for mediation and the Mediation Centre shall make all possible efforts to conclude the mediation and conciliation proceedings expeditiously.

7. Put up as fresh in the week commencing 03.03.2025.

8. It is further provided, if applicants file receipt of deposit of the aforesaid amount before the court below then no coercive action shall be taken against the applicants in the aforesaid case, till the next date of listing.

9. It is also made clear that in case the applicants fail to submit the receipt of the aforesaid deposit before the court below then the court below is free to proceed against the applicants."

5. There is an office report and Annexure-E, Form 5 Report to Court, Allahabad High Court, Mediation and Conciliation Center that Mediation completed. No agreement.

6. Learned counsel for the applicants has submitted that the opposite party No. 2 had lodged a complaint under Section 12 of the Protection of Women from Domestic Violence Act 2005 against the applicants with an allegation that the marriage of the opposite party no. 2 stood solemnized with

the applicant no. 1 on 22.02.2021, however, making allegations referable to the subjecting of domestic violence, proceedings under Section 12 of the Protection of Women from Domestic Violence Act 2005 stood initiated by the opposite party No. 2 against the applicants who are husband, mother-in-law, Jeth, Nanad, father-in-law. Learned counsel for the applicants submits that besides filing complaint under Section 12 of the Protection of Women from Domestic Violence Act 2005, proceedings under Section 125 of Cr.P.C. also stood initiated. It is also submitted that even proceedings under Section 281 of the Muslim Law for Restoration of Marriage was also preferred by the applicant no. 1. Learned counsel for the applicants submits that the applicant No. 1 and opposite party No. 2 are living separately. Submission of the learned counsel for the applicants is that there is no shared households as per Section 2(s) of the Act and applicant do not answer the description of respondent under Section 2(r) of the Act and the opposite party No. 2 is not an aggrieved person under Section 2(a) of the Act.

7. Learned AGA as well as counsel for the opposite party No. 2 submits that only notices have been issued and once the matter was referred for mediation, the mediation was failed then it is for the applicants to contest the proceedings and, in case, any orders are passed under Chapter IV of the 2005, Act then appropriate remedy under Section 25 or 29 of the Act can be raised.

8. I have heard learned counsel for the parties and gone through the records carefully.

9. In the present case at hand, challenge has been raised to the order, issuing notice and the complaint lodged under Section 12 of the Domestic Violence Act. Apparently, no order under Chapter IV of the 2005 Act had been passed. So far as the allegations with respect to lodging of different proceedings before separate forums is concerned, the same would have their own effect and their strength is to be determined, once the trial commences in that regard. This Court is also not required to go into the merits of the matter. Since the applicant No. 1 has already initiated proceedings under Section 281 of the Muslim Law for Restoration of Marriage before the Family Court, Agra, thus, it cannot be said that the opposite party No. 2 is not an 'aggrieved person' within the definition of Section 2(a) of the Act. The nature of the allegations would make it dependent as to whether there is any shared household under Section 2(s) and applicant's answer his description of respondent under Section 2(r). Since no orders whatsoever has been passed, thus, it would not be appropriate at this stage to interfere.

10. Nonetheless, the question regarding separate living is a question of fact which would also need recording of evidence as there are pinpointed allegations against the applicants.

11. Hon'ble Apex Court in the case of Saurav Kumar Tripathi v. Vidhi Rawal in Criminal Appeal No. 2688 of 2025 decided on 19.05.2025 had flagged a note of caution while mandating that in a routine manner in exercise of jurisdiction under Section 482 Cr.P.C./ 528 BNSS should not be resorted too so as to scuttle the proceedings. The following was observed:

> "35. When it comes to exercise of power under Section 482 of the CrPC in relation to application under Section 12(1), the High Court has to keep in mind the fact that the DV Act, 2005 is a welfare legislation specially enacted to give justice to those women

> who suffer from domestic violence and for preventing acts of domestic violence. Therefore, while exercising jurisdiction under Section 482 of the CrPC for quashing proceedings under Section 12(1), the High Court should be very slow and circumspect. Interference can be made only when the case is clearly of gross illegality or gross abuse of the process of law. Generally, the High Court must adopt a hands-off approach while dealing with proceedings under Section 482 for quashing an application under Section 12(1). Unless the High Courts show restraint in the exercise of jurisdiction under Section 482 of the CrPC while dealing with a prayer for quashing the proceedings under the DV Act, 2005, the very object of enacting the DV Act, 2005, will be defeated.
>
> 39. To conclude, the view taken in the impugned order of the High Court that a petition under Section 482 of the CrPC for challenging the proceedings emanating from Section 12(1) of the DV Act, 2005 is not maintainable, is not the correct view. We hold that High Courts can exercise power under Section 482 of CrPC (Section 528 of the BNSS) for quashing the proceedings emanating from the application under Section 12(1) of the DV Act, 2005, pending before the Court of the learned Magistrate. However, considering the object of the DV Act, 2005, the High Courts should exercise caution and circumspection when dealing with an application under Section 12(1). Normally, interference under Section 482 is warranted only in the case of gross illegality or injustice."

12. Looking into the facts and circumstances of the case, this Court does not find any reason to interfere in the proceedings, thus, it would be appropriate for the applicants to contest the proceedings on merits taking all legal and factual grounds.

13. Accordingly, no interference is declined, the application is disposed of granting liberty to the applicants to take all legal and factual grounds while contesting the application and, in case, such grounds are taken then this court has no reason to disbelieve then the same shall be decided strictly in accordance with law.

Order Date :- 10.7.2025 A. Prajapati